

Prajakta Pandharinath Wankhede @ ... vs Dhananjay Murlidhar Wagh on 11 June, 2019

Author: K.K.Tated

Bench: K.K. Tated

This Order is modified/corrected by Speaking to Minutes Order dated 24/06/2019

(510)mca-st-13627-19 corrected.doc

FARAD CONTINUATION SHEET
IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIVIL APPELLATE JURISDICTION

MISC.CIVIL APPLICATION (STAMP)NO.13627/19

Office Notes, Office
Memoranda of Coram,
appearances, Court's
orders or directions
and Registrar's orders

Court's or Judge's orders.

Mr.Jayendra D. Khairnar,
for applicant.
None for respondents.

advocate

CORAM : K.K.TATED, J.

DATED : JUNE 11, 2019

P.C.

Heard learned advocate for applicant.

2. By this application under Section 24 of C.P.C., the applicant/wife is seeking transfer of marriage petition No.72/2019, filed by husband/respondent for divorce under Section 13(1)(ib) of Hindu Marriage Act, 1955 from the office of learned Civil Judge, Senior Division, Madgaon, Goa to learned Family Court, Nashik

3. Learned counsel for applicant submits that the applicant is a household wife. Therefore, it is not possible for her to attend each and every date. He submits that the distance between Nashik and Madgaon is of This Order is modified/corrected by Speaking to Minutes Order dated 24/06/2019 (510)mca-st-13627-19 corrected.doc over night journey. Therefore, it is difficult for applicant to travel alone from Nashik to Madgaon.

4. Considering the submissions made by learned advocate for the applicant and the averments made in applicant, and as applicant is housewife, I am satisfied that applicant has made out a case for following order.

a)Office is directed to issue notice before admission to the respondent returnable on 19.07.2019 stating that if time permits the matter would be decided at the stage of admission itself.

b) Applicant is permitted to serve the respondents by private notice either by RPAD and/or hand delivery and file affidavit of service to that effect, on or before next date, stating that if time permits the matter would be decided at the stage of admission itself.

c)Applicant to remove all office objections on or before 29.6.2018 failing which the miscellaneous civil application shall stand This Order is modified/corrected by Speaking to Minutes Order dated 24/06/2019 (510)mca-st-13627-19 corrected.doc dismissed without referring back to the court.

d) Liberty granted to applicant to move for ad-interim relief, before returnable date, after giving 72 hours clear notice to the respondents alongwith the entire proceedings.

(K.K.TATED, J.)